No. 25-8027

UNITED STATES COURT OF APPEALS
FOR THE TENTH CIRCUIT

UNITED STATES COURT OF APPEALS
FOR THE TENTH CIRCUIT

ASHLEY WILLEY & SEAN WILLEY

Plaintiffs-Appellants,

Ashley Willey & Sean Willey,
Plaintiffs-Appellants,

Appellate Case No. 25-8027

v.

v.

SWEETWATER COUNTY SCHOOL DISTRICT No. 1 BOARD OF TRUSTEES; KELLY MCGOVERN, Superintendent of Sweetwater County School District No. 1; **NICOLE BOLTON,** Assistant Superintendent & Human Resources Director of Sweetwater County School District No.1; **KAYCI ARNOLDI,** Director of Student Services of Sweetwater County School District No. 1; **BRYANT BLAKE,** Principal of Black Butte High School,

Sweetwater County School District No. 1 Board of Trustees; Kelly McGovern, Superintendent of Sweetwater County School District No. 1; Nicole Bolton, Assistant Superintendent & Human Resources Director of Sweetwater County School District No. 1; Kayci Arnoldi, Director of Student Services of Sweetwater County School District No. 1; Bryant Blake, Principal of Black Butte High School,

Defendants-Appellees.

On Appeal from the United States District Court for the District of Wyoming
The Honorable Scott W. Skavdahl, District Court Judge
District Court Case Number 23-cv-69-S

Defendants-Appellees.

ANSWER BRIEF OF APPELLEES BOARD OF TRUSTEES FOR SWEETWATER COUNTY SCHOOL DISTRICT NO. 1, ET AL.

ORAL ARGUMENT IS NOT REQUESTED

On Appeal from the United States District Court for the District of Wyoming
The Honorable Scott W. Skavdahl, District Court Judge
District Court Case Number 23-cv-69-S

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TABLE OF CONTENTS

III. Ms. Willey Cannot Establish That Her Religious Beliefs Were Infringed in the Employment Setting 42

Conclusion 48

STATEMENT OF COUNSEL AS TO ORAL ARGUMENT 51

CERTIFICATE OF COMPLIANCE WITH TYPE-VOLUME LIMIT 52

CERTIFICATE OF DIGITAL SUBMISSION 53

CERTIFICATE OF SERVICE 54

TABLE OF AUTHORITIES iii

STATEMENT OF PRIOR OR RELATED APPEALS iii

JURISDICTIONAL STATEMENT 1

STATEMENT OF ISSUES FOR REVIEW 1

STATEMENT OF THE CASE 1

I. Factual Background: 1

II. Procedural Background: 5

CONCLUSION 6

STATEMENT OF COUNSEL AS TO ORAL ARGUMENT 7

CERTIFICATE OF COMPLIANCE WITH TYPE-VOLUME LIMIT 8

CERTIFICATE OF DIGITAL SUBMISSION 9

CERTIFICATE OF SERVICE 10

STATEMENT OF COUNSEL AS TO ORAL ARGUMENT

Oral argument is not requested or required under Fed. R. App. P. 34(2)(a)-(c) because: (1) the appeal is frivolous; (2) the dispositive issues have been authoritatively decided; and (3) the facts and legal arguments are adequately presented in the briefs and record, and the decisional process would not be significantly aided by oral argument. *See Chung v. Washington Interscholastic Activities Ass'n*, 538 F. Supp. 3d 1170, 1175 (W.D. Wash. 2021) ("When a party has [had] an adequate opportunity to provide the trial court with evidence and a memorandum of law, there is no prejudice [in a refusal to grant oral argument." (quoting *Partridge v. Reich*, 141 F.3d 920, 926 (9th Cir. 1998)).

STATEMENT OF PRIOR OR RELATED APPEALS

There are no prior or related appeals.

TABLE OF AUTHORITIES

Cases — **Page(s)**

Chung v. Washington Interscholastic Activities Ass'n, 538 F. Supp. 3d 1170 (W.D. Wash. 2021) 7

Partridge v. Reich, 141 F.3d 920 (9th Cir. 1998) 7

Statutes

42 U.S.C. § 1983 5

Rules

10th Cir. R. 25.5 9

Fed. R. App. P. 32(a)(7)(B) 8

Fed. R. App. P. 34 7

JURISDICTIONAL STATEMENT

The District does not object to the Willeys' statement of jurisdiction and agrees that this Court has jurisdiction over this appeal.

STATEMENT OF ISSUES FOR REVIEW

1. The District Court appropriately held that no genuine dispute of material fact existed in light of the Willeys' failure to present evidence that there was an official policy regarding the use of preferred names or pronouns or "concealment" of a student's choice from parents during the 2021-22 school year, and that no such use or concealment occurred during the 2022-23 school year when an official policy did exist. Therefore, the Willeys cannot demonstrate their fundamental constitutional rights have been violated.

2. The District Court correctly determined that the 2022-23 and 2023-24 PNCPs were content neutral rules of general applicability such that Ms. Willey failed to establish an infringement on her fundamental Constitutional rights as a teacher.[1]

STATEMENT OF THE CASE

I. Factual Background:

Appellant Ashley Willey is a mother to student, A.S. (the "Student"), who attended Black Butte High School within the District for the 2021-22 and 2022-23 school years. (FAC ¶ 12; App. Vol. I at 0152.) During the 2021-22 school year, the District had no policy or procedure – official or unofficial – that governed the use of a student's chosen name or pronoun by District staff. (App. Vol. 3 at 457, 464-65, 564,

[1] The Willeys propose a third issue for review that is functionally identical to their first proposed issue. The District believes only two issues are properly before the Court.

STATEMENT OF THE CASE

I. Factual Background:

Appellant Ashley Willey is a mother to student, A.S. (the "Student"), who attended Black Butte High School within the District for the 2021-22 and 2022-23 school years. (FAC ¶ 12; App. Vol. I at 0152.) During the 2021-22 school year, the District had no policy or procedure – official or unofficial – that governed the use of a student's chosen name or pronoun by District staff. (App. Vol. 3 at 457, 464-65, 564, 596, fn.16.) During the 2021-22 school year, at least two District teachers, Chelsea Lund and Jennifer Copeland, that she be referred to by an alternate nickname. (App. Vol. 3, 0455, 0464) (each testifying that the reason they called the Student by the chosen nickname was because she asked them to.) Another teacher, Clif Clifton, testified that he used the alternate nickname when referring to the Student because he "heard and saw other students doing it." (App. Vol. 3 at 0461) It is unclear whether any District staff ever referred to the Student by alternate pronouns, though the District concedes it is possible they did so. Regardless, any such references to the Student during the 2021-22 school year, whether through nicknames or pronouns, were done without the District's knowledge and were not pursuant to any District policy or procedure.

On or about March 29, 2022, Ms. Willey attended a district-wide training where she communicated with District teachers Jennifer Copeland and Chris Clifton. (FAC ¶¶ 31-35; App. Vol. I, 0155). Neither Ms. Copeland nor Mr. Clifton have a specific recollection of the conversation, but they have no reason to dispute it transpired much as Ms. Willey describes in her First Amended Complaint. The allegations are that at the training Ms. Willey asked the teachers if they knew her daughter. Id. Upon showing them a picture of the Student, the teachers responded that they knew her by an alternate name starting with "C." Id. Thus, no dispute exists that the first time Ms. Willey inquired whether teachers so much as knew her daughter, the teachers volunteered the information that they knew her by an alternate name. No evidence exists that at any point Ms. Willey was lied to or information regarding the Student's use of alternate names at school was concealed. Ms. Willey's discovery of this information was by no

High School at that time. Mr. Audevart's correspondence with the Student, at least arguably, violated District Policy Manual Code GBH, Section G which provides that "staff members shall not exceed their level of training or expertise by attempting to counsel, assess, diagnose, or treat a student's personal problem relating to sexual behavior, substance abuse, mental or physical health and/or family relationships but, instead, shall refer the student to the appropriate professional or agency for assistance." (App. Vol. III, 0507-10) Mr. Audevart's communications and potential violation of District policy were unknown to the District until the emails came to light during discovery in the underlying matter.

On August 15, 2022, the District's Special Services Department adopted the SCSD#1 Special Services Non-Negotiables which is a document setting forth the department's expectations of its staff for the upcoming school year. (App. Vol. II, 0366-69) The 2022-23 Non-Negotiables contained a Preferred/Chosen Names Procedure (the "2022-23 PNCP"). The 2022-23 PNCP required staff to honor all student requests to be referred to by alternate names or pronouns. Ms. Willey expressed to Assistant Superintendent and Human Resources Director, Nicole Bolton, that she disagreed with the procedure in general terms. (App. Vol. II, 0399.) Ms. Bolton advised Ms. Willey to speak to her direct supervisor, Kris Cundall. *Id.* Ms. Cundall informed Ms. Willey that if she were faced with a situation where a student requested she use an alternate name or pronoun that she could "tell the

student that [she] needed to go by what was in Powerschool." *Id.* The name used in Powerschool matches the name on the student's birth certificate. Thus, when Ms. Willey expressed general disagreement with the PNCP she was offered an alternative course of action that would not conflict with her religious beliefs. No evidence exists that Ms. Willey ever requested the District grant a specific accommodation for her religious beliefs or was faced with a situation where those beliefs were potentially in conflict with the PNCP during the 2022-23 school year.

On August 14, 2023, the District's Special Services Department adopted a revised version of the SCSD#1 Special Services Non-Negotiables to further clarify several requirements including those of the 2023-24 PNCP. (App. Vol. II, 0374-78). The 2023-24 Non-Negotiables contained a revised version of the PNCP that expressly stated that parents were to be informed of a student's decision regarding chosen names and/or pronouns upon request. *Id.* The 2023-24 Procedure expressly provided for reasonable accommodation for any personnel who could not follow the Procedure for any reason. *Id.* Ms. Willey never requested religious accommodation under the 2023-24 PNCP.

Ms. Willey never used a student's alternate name or pronoun during her employment for the District. (App. Vol. II, 0358, 0361-63). Ms. Willey has never been subject to any form of discipline by the District for failing to use a student's preferred name or pronouns. *Id.*

II. Procedural Background:

The Willeys filed the underlying action on April 20, 2023, alleging violations of their constitutional rights under 42 U.S.C. § 1983. (App. Vol. I, 0020). The following day the Willeys moved for a preliminary injunction blocking the District from implementing the 2022-23 PNCP among other items. The District Court partially granted the Willeys' request for a preliminary injunction to the extent the District, in the absence of reasonable concern of physical harm or abuse, required its staff to either not respond or lie to a parent's inquiry regarding their child. The District, having never imposed such a requirement, was unaffected by the injunction.

II. Procedural Background:

On June 29, 2023, the District filed a motion to dismiss Plaintiff's Complaint. Contrary to the Willeys' statement of procedural history in their Opening Brief, the District Court never ruled on the substance of the District's motion to dismiss. *See* Opening Brief, pp. 16-17. Rather than respond to the District's Motion, the Willeys filed their First Amended Complaint ("FAC") on July 20, 2023. The District Court then denied the District's first motion to dismiss as moot.

The District filed a second motion to dismiss the FAC on August 17, 2023. The District Court granted the motion, in part, on December 18, 2023. Following the Court's Order, the Willeys were not permitted to proceed with any claims for declaratory and injunctive relief with respect to their claims based on infringement of their parental rights (Claims One and Two) but could only seek nominal and

filed their First Amended Complaint ("FAC") on July 20, 2023. The District Court then denied the District's first motion to dismiss as moot.

CONCLUSION

No genuine dispute of material fact exists as to any of the Willeys' claims. Indeed, the Willeys failed to produce evidence sufficient to support their claims. The Willeys failed to produce evidence of a 2021 Policy, or that the Student was ever referred to by an alternate name or pronoun pursuant to the 2022-23 PNCP.

Even if they had produced such evidence, the Willeys cannot establish that the District knew any of its staff referred to the Student by alternate names or pronouns, or that the District had an affirmative duty to notify them of that use had it been made aware of the same. No court has ever required state actors – particularly in the absence of a request - to proactively police and enforce privately held religious beliefs on behalf of third parties. The District Court correctly held that doing so would turn the First Amendment on its head.

Ms. Willey failed to establish that the 2022-23 and 2023-24 PNCPs were not content neutral laws of general applicability subject to rational basis review. Nor did Ms. Willey establish facts sufficient to find that the District failed to reasonably accommodate her religious beliefs. The opposite is true. Ms. Willey testified that her immediate supervisor told her she could refer to students by the names found in Powerschool, i.e. the names on their birth certificates. Therefore, the only evidence in the record is that the District reasonably accommodated Ms. Willey's beliefs.

The Willeys failed to produce evidence that the District knew or should have known of their religious convictions, or that the District took any action that caused the Willeys to violate their right to religious expression.

Even if they had produced such evidence, the Willeys cannot establish that the District knew any of its staff referred to the Student by alternate names or pronouns, or that the District had an affirmative duty to notify them of that use had it been made aware of the same. No court has ever required state actors – particularly in the absence of a request - to proactively police and enforce privately held religious beliefs on behalf of third parties. The District Court correctly held that doing so would turn the First Amendment on its head.

Ms. Willey failed to establish that the 2022-23 and 2023-24 PNCPs were not content neutral laws of general applicability subject to rational basis review. Nor did Ms. Willey establish facts sufficient to find that the District failed to reasonably accommodate her religious beliefs. The opposite is true. Ms. Willey testified that her immediate supervisor told her she could refer to students by the names found in Powerschool, i.e. the names on their birth certificates. Therefore, the only evidence in the record is that the District reasonably accommodated Ms. Willey's beliefs.

Because the 2022-23 and 2023-24 PNCPs were content neutral and of general applicability, the District satisfied rational basis review because it had a legitimate governmental interest in complying with controlling law that prevented discrimination against students based on gender identity.

WHEREFORE, the District Court properly granted summary judgment in favor of the District. The District respectfully requests this Court affirm and uphold the District Court's *Order Granting Defendants' Summary Judgment Motion.*

Respectfully submitted

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STATEMENT OF COUNSEL AS TO ORAL ARGUMENT

Oral argument is not requested or required under Fed. R. App. P. 34(2)(a)-(c) because: (1) the appeal is frivolous; (2) the dispositive issues have been authoritatively decided; and (3) the facts and legal arguments are adequately presented in the briefs and record, and the decisional process would not be significantly aided by oral argument. *See Chung v. Washington Interscholastic Activities Ass'n*, 538 F. Supp. 3d 1170, 1175 (W.D. Wash. 2021) ("When a party has [had] an adequate opportunity to provide the trial court with evidence and a memorandum of law, there is no prejudice [in a refusal to grant oral argument." (quoting *Partridge v. Reich*, 141 F.3d 920, 926 (9th Cir. 1998)).

CERTIFICATE OF COMPLIANCE WITH TYPE-VOLUME LIMIT

1. This brief complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B) because:

[x] this brief contains 1,802 words, excluding the parts of the brief exempted by Fed. R. App. P. 32(f) and 10th Cir. R. 32(B).

1. This brief complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B) because:

[x] this brief contains 12,524 words, inclusive of the parts of the brief exempted by Fed. R. App. P. 32(a)(7)(B)(iii).

2. This brief complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type style requirements of Fed. R. App. P. 32(a)(6) because:

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CERTIFICATE OF DIGITAL SUBMISSION

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I hereby certify that with respect to the foregoing:

(1) all required privacy redactions have been made per 10th Cir. R. 25.5;

(2) if required to file additional hard copies, that the ECF submission is an exact copy of those documents;

(3) the digital submissions have been scanned for viruses with the most recent version of a commercial virus scanning program, Microsoft Defender Antivirus with security intelligence version dated September 22, 2025, and according to the program are free of viruses.

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CERTIFICATE OF SERVICE

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I hereby certify that on September 22, 2025 a true and correct copy of the foregoing was filed with the Clerk of the Court using CM/ECF system and also served on the following:

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